

NAPCS Unionization Research — State — Charter Sector Overview
Virginia — Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5
Baltimore (5 schools) Jurisdiction — 2026-06-06
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Section 1: State Overview

State	Virginia
Labor Board	Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools)
Governing Law	
Federal NLRB Jurisdiction	YES —
Right-to-Work	Right-to-Work State — Virginia Code §40.1-58 et seq. (Virginia Right to Work Act) (Virginia has been right-to-work since 1947. Employees at any organized VA charter school cannot be required to join a union or pay dues as a condition of employment. Applies to both NLRB private employer schools and schools covered by the Va. Code §40.1-57.2 state CB framework.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — Va. Code §40.1-57.2 CB framework: certification requires majority employee support in bargaining unit election. No card-check pathway under Virginia state CB law.
Registry Sweep	— — 7 charter schools searched
Research Window	June 2026

Section 2: Charter Sector Landscape

Total charter schools in Virginia: 7 (VDOE charter school page (confirmed June 2026): "There are seven public charter schools operating in Virginia." All 7 confirmed.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
	2	28.6%	
	5	71.4%	

Charter Sector Enrollment

Total Charter Enrollment	1,270 students — 0.1% of state K–12 enrollment (1,257,315 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	0 students (no CMO/EMO networks identified)
Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

No charter management organizations identified in Virginia in the Charter School Registry.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of 2026-06-06.

1: Legal & Jurisdictional Framework

Charter schools in Virginia are subject to NLRB jurisdiction as private employers (Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools)). Virginia is a right-to-work state (Virginia Code §40.1-58 et seq. (Virginia Right to Work Act)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

Virginia operates 7 open-enrollment charter schools, enrolling approximately 1,270 students. No multi-campus charter networks are identified in the Charter School Registry for Virginia. Approximately 7 schools operate independently with no CMO or EMO affiliation.

Section 5: Media Coverage & Public Stakeholder Positions

Media coverage and stakeholder position data not yet documented for this state.

Section 6: Contract & CBA Access Registry

Two VA charter schools are covered by district CBAs under Va. Code §40.1-57.2.
Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools) public contracts portal.
Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Community Lab School	Albemarle Education Association (AEA / VEA / NEA)		N/A
Richmond Career Education and Employment Academy	Richmond Education Association (REA / VEA / NEA)		N/A